

Pradeep Kumar v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 26 May 2022 · Writ-C No. 9982 of 2022 · **Writ disposed; liberty to object under clause 6.5; coercive action stayed**

HEADNOTE

A writ to quash a recovery notice of Rs 19,50,385 and to compel meter-based electricity bills was disposed without any opinion on merits. The consumer may, within four weeks and with a certified copy of the order, submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3. If filed in time, that authority must decide it according to law within the next four weeks after a hearing. Coercive action on the demand is barred for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Pradeep Kumar moved the Allahabad High Court against the State of Uttar Pradesh and three others. He sought quashing of a recovery notice dated 27 August 2021 for Rs 19,50,385 issued by respondent no. 3, and a direction that the same authority issue electricity bills according to proper meter readings. Counsel for the Power Distribution Corporation, respondent nos. 2 and 3, stated on instructions that the petitioner could file an objection to the demand and that the objection would be decided according to law within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to a recovery demand

HOLDING

Without expressing any opinion on the merits, the writ is disposed with liberty to the consumer to submit, within four weeks and with a certified copy of the order, an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 against the recovery demand. If the objection is filed in time, respondent no. 3 shall decide it in accordance with law within the next four weeks after affording a reasonable hearing. Coercive action on the impugned demand is barred for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ seeking quashing of the Rs 19,50,385 recovery notice and meter-based bills was disposed without a finding on merits, with liberty to object under Para 6.5 before respondent no. 3 within four weeks. ¶ 1

para-6.5-objection-before-coercive-recovery Coercive action on the impugned demand was restrained for eight weeks, or until the Para 6.5 objection is decided, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICE DATED 27 AUGUST 2021 FOR RS 19,50,385, AND THE ELECTRICITY BILLS, ARE CORRECT

The Court expressed no opinion on merits and left the demand to a Para 6.5 objection. ¶ 1